

**BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION,
PUNE**

CC/441/2025

Sunita Deshpande ... COMPLAINANT

VERSUS

Sanchay Life Insurance Company Limited ... OPPOSITE PARTY

Date of Order:	12.03.2026
Coram:	President and Members, DCDRC Pune
Appearances:	Ms. Priya Kulkarni, Advocate for Complainant; Mr. Abhishek Bhatnagar, Advocate for Opposite Party

ORDER

1. Heard the learned counsel for the Complainant and the learned counsel for the Opposite Party, and perused the record including the pleadings, documentary evidence and written arguments filed by both sides.
2. The following points arise for determination: (i) whether an unanswered field in the Proposal Form amounts to suppression of a material fact; (ii) whether the factual basis of the repudiation is established; and (iii) whether the Opposite Party is liable for deficiency in service.
3. It is not in dispute that Policy No. SLIC-4471-208833 was issued on 28.04.2022 for a sum assured of Rs. 12,00,000, that three annual premiums were duly paid, and that the Life Assured passed away on 14.02.2025 of cardiac arrest during the currency of the Policy.
4. The claim was repudiated solely on the ground that the Life Assured had allegedly been diagnosed with hypertension prior to the proposal, a fact said to have been suppressed by leaving the relevant field in the Proposal Form unanswered.
5. On a careful reading of the Proposal Form (Annexure A-1), this Commission finds that the field in question was left blank rather than answered in the negative. A blank answer is at best equivocal and, without independent proof that the fact existed and was known to the proposer, cannot by itself amount to suppression of a material fact.
6. The Opposite Party's own documents do not inspire confidence on the factual basis of the repudiation. The Repudiation Letter records the alleged diagnosis as dated 14.02.2021, while the Investigator's Report attributes the same physician's note to 24.02.2021 -- an unexplained inconsistency going to the very root of the repudiation ground.
7. More significantly, the reply of Sassoon General Hospital dated 15.07.2025, placed on record by the Complainant, states in terms that its OPD register discloses no entry for the Life Assured on either of the two dates relied upon by the Opposite Party. The Opposite Party has not seriously disputed the authenticity of this reply, save to describe it as a bare denial.
8. This Commission also notes the Opposite Party's own Underwriting File Note dated 25.04.2022 (Annexure R-2), which shows that the blank field was noticed at the underwriting stage itself and the proposal was accepted in the ordinary course without any query being raised. Having accepted the risk and received premiums for three years without demur, it does not lie in the Opposite Party's mouth to treat the same blank, only upon a claim being made, as a fatal suppression.
9. For the above reasons, this Commission holds points (i) and (ii) in favour of the Complainant.

The repudiation of an otherwise genuine claim, on a ground that is both legally insufficient and factually unsubstantiated, constitutes deficiency in service and unfair trade practice within the meaning of Section 2(11) of the Consumer Protection Act, 2019, answering point (iii) as well.

10. The complaint is accordingly allowed. The Opposite Party is directed to pay to the Complainant the sum assured of Rs. 12,00,000 with interest at 9% per annum from the date of repudiation, namely 10.06.2025, till the date of realisation, together with compensation of Rs. 75,000 for mental agony and harassment and costs of Rs. 25,000, all within sixty days of this order, failing which the amount shall carry further interest at 12% per annum until payment.

(President and Members)